

SECTION 1

GENERAL

1.1 INITIAL LISTING

- (a) An applicant for a listing of Securities must comply with these Rules. An applicant is required to forward to the Exchange a listing undertaking as set out in Appendix 1A, which shall constitute a binding contract between the applicant and the Exchange. The Listing Rules create obligations, which are additional and complementary to statutory obligations.
- (b) An applicant Entity should in the first instance, list its shares, prior to applying for a listing of Other Class of shares.

Provided however, this Rule shall not be applicable to;

- (i) applicant Local Entities seeking to list its Foreign Currency denominated shares on the Exchange; and,
- (ii) applicant Entities seeking to list its shares on the Catalist Board of the Exchange.

1.2 APPLICABILITY OF THE RULES

- (a) All Entities whose Securities are listed on the Exchange, inclusive of Entities listed prior to these Rules coming into operation, and Managing Companies of Investment Schemes shall be bound by these Rules, and any addition, alteration or amendment to these Rules as may be made from time to time.
- (b) All Entities whose Securities are listed are required to forward to the Exchange within three (03) months of coming into operation of these Rules, a listing undertaking as set out in Appendix 1A along with the Certificate of Registration issued by the Registrar General of Companies, in terms of Section 485 (6) of the Companies Act.
- (c) Unless expressly exempted from the requirement to comply, all Entities whose Securities will be/are already listed on the Empower Board in the Alternate Market Segment, shall comply with these Rules.
- (d) The Securities that may be eligible to be listed shall be decided by the Exchange from time to time.
- (e) The Exchange has the absolute discretion to accept or reject any listing application and in the administration of these Rules. The Exchange may also require or impose additional requirements or conditions on applicants for listing or on Entities whose Securities are listed.
- (f) If an Entity or a Managing Company does not comply with the Rules, the Exchange may take action in terms of Section 10 of the Rules.

1.3 METHODS BY WHICH THE SECURITIES MAY BE LISTED

1.3.1 Securities (Shares and Debt)

(a) **OFFER FOR SUBSCRIPTION**

An Offer for Subscription is an invitation to the public by or on behalf of an Entity to subscribe for its Securities.

(b) **OFFER FOR SALE**

An Offer for Sale is an invitation to the public by, or on behalf of holder(s) or allottee(s) to subscribe for its Securities already in issue.

Provided however, an applicant Local Entity shall not be permitted to list Foreign Currency denominated Securities on the Exchange through an Offer for Sale.

(c) **INTRODUCTION**

An Introduction is the listing of the Securities of an Entity on the Exchange without the requirement of an initial public offering.

Provided however, an applicant Local Entity shall not be permitted to list Foreign Currency denominated Securities on the Exchange through an Introduction.

1.3.2 Investment Schemes

Units of an Investment Scheme may be listed on the Exchange through an Offer for Subscription to the Public or through an Introduction in terms of these Rules. Rules for listing units of Investment Schemes are set out in Section 4 of these Rules.

APPENDIX 1A

LISTING UNDERTAKING BY ...[enter name of Entity]...

To: The Colombo Stock Exchange
04-01, West Block, World Trade
Center Echelon Square
Colombo 1

We (name of Entity) being a Listed Entity and duly incorporated/established and having our registered office / principal place of business at hereby undertake and agree:

- (i) to be bound by the applicable Rules and Circulars of the Colombo Stock Exchange (Exchange) and the Central Depository Systems (Pvt.) Limited as amended or replaced from time to time, and
- (ii) to be listed for such period as may be determined by the Exchange and at the sole discretion of the Exchange.

We submit herewith a certified copy of the Certificate of Registration issued by the Registrar General of Companies, in terms of Section 485 (6) of the Companies Act (as applicable).

Given under the Common Seal of the Entity this day ofin the presence of

.....
(Name) Director

.....
(Name) Director/Secretary

Or,

Signed by the duly authorized signatories of the Entity on this day of

.....
(Name) Authorised Signatory

Note: please attach a copy of the Board Resolutions/Power of Attorney in proof of such authority.